

HOUSE No. 2684

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the return of firearms.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 2684

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 2684) of David Allen Robertson relative to the return of firearms stored at private businesses. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2392 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the return of firearms.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 140 of the general laws is hereby amended by inserting after section 123 the
2 following new section:-

3 "Section 123A. Notwithstanding any general or special law or regulation to the contrary,
4 any person having temporarily stored a weapon with a private business including, but not limited
5 to, a licensed retailer under section 123 or a bonded warehouse under section 129D shall be
6 entitled to the return of their property.

7 If in the event that said property was transferred to and stored by a private business
8 without the expressed written consent of the property owner, no fees may be charged as a
9 requirement for the return of said property.

10 Notwithstanding any general or special law or regulation to the contrary, any person
11 having temporarily transferred a weapon to a private business including, but not limited to, a
12 licensed retailer under section 123 or a gunsmith for, but not limited to, repair, modification,
13 warranty work, replacement or maintenance shall be entitled to the return of their property."